

23NWCV00043 23NWCV00043

County: los-angeles

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Case Number: 23NWCV00043 Hearing Date: August 21, 2026 Dept: D

UNITED STATES FIRE

INSURANCE CO. V. PRECISION PIPELINE & PAVING INC. ET AL.

CASE NO.: 23NWCV00043

HEARING: 08/21/2026 @ 9:30 a.m.

#15

TENTATIVE ORDER

Plaintiff's Motions are
GRANTED in their entirety.

Plaintiff's Requests for
Sanctions are GRANTED at a reduced rate.

Defendant Precision Pipeline
& Paving Inc. is ordered to provide full, Code-compliant responses to the
subject discovery, without objections, within 30 days of this Order.

The Court deems admitted the
matters referred to in Plaintiff's Requests for Admissions, Set One, to
defendant Precision Pipeline & Paving, Inc.

Defendant Precision Pipeline

& Paving, Inc. is ordered to pay \$1,095.00 to Plaintiff and/or its counsel of record within 30 days of this Order.

Defendant Dan Eberhart is ordered to provide, full, Code-compliant responses to the subject discovery, without objections, within 30 days of this Order.

The Court deems admitted the matters referred to in Plaintiff's Requests for Admissions, Set One, to defendant Dan Eberhart.

Defendant Dan Eberhart is ordered to pay \$1,095.00 to Plaintiff and/or its counsel of record within 30 days of this Order.

Plaintiff to give notice.

Background

Plaintiff filed this breach of contract and indemnity claim against defendants Precision Pipeline & Paving Inc. (Precision), Dan Eberhart (Eberhart), and Totem Industrial Holdings LLC on January 5, 2023.

Plaintiff's claims arise from a \$545,275.00 Labor and Material Payment Bond (Bond) it issued on behalf of Precision at Defendants' behest on November 18, 2020. Plaintiff subsequently satisfied several claims on the Bond, and sues to recover its outlays.

On July 9, 2024, the Court entered default judgment against Precision and Eberhart.

On May 22, 2025, the Court granted Precision and Eberhart's motion to set aside the default judgment. Precision and Eberhart separately filed their joint Answer the same date.

On May 23, 2025, Precision and Eberhart's counsel moved to be relieved. The Court granted counsel's motion on

September 12, 2025.

On August 4, 2026, Plaintiff filed the eight discovery motions now before the Court: motions to compel initial responses to Plaintiff's Form Interrogatories, Special Interrogatories, and Requests for Production, Sets One, propounded separately on Eberhart and Precision, and motions to deem admitted the matters referred to in Plaintiff's Requests for Admission, Set One, propounded on each defendant.

Plaintiff also requests \$487.50 in sanctions in connection with each of the prior six motions, and \$630.00 for each of the latter two.

The motions are unopposed.

Legal Standard

Pursuant to Code of Civil

Procedure section 2030.290, "[i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or the protection for work product under Chapter 4 (commencing with Section 2018.010. . . . [and] The party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290 (a)-(b).)

Similarly, under Code of Civil

Procedure section 2031.300, "[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it . . . [t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010. . . . [and] The party making the demand may move for an order compelling response to the demand. (Id., § 2031.300(a)-(b).)

Pursuant to Code of Civil

Procedure section 2033.280, subdivision (a), "[i]f a party to whom requests or admission are directed fails to serve a timely response...[t]he party to whom the

requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]” (Id., § 2033.280(a).) Where a party fails to respond to requests for admissions, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (Id., § 2033.280 (b).) The court “shall” grant a motion to deem admitted the matters specified in the requests for admissions, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Id., § 2033.280(c).)

Analysis

Plaintiff’s unopposed motion establishes it propounded each of the subject sets of discovery on Precision or Eberhart on August 8, 2025. (Martinez-Genzon Decls., ¶¶ 3.) The deadline for response was September 15, 2025. (Ibid.) After granting Defendants a one-month extension, no response was forthcoming. (Id., ¶¶ 5.) Defendants did not respond to written followup. (Id., ¶¶ 6.) No responses had been received when the motions were filed. (Id., ¶¶ 7.)

Plaintiff is entitled to an order compelling responses to all subject discovery and deeming matters admitted.

Sanctions

“The court shall impose a monetary sanction under [section 2023.010 et seq.] against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel [initial responses] ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c) [interrogatories], 2031.300(c) [requests for production]; 2033.280(c) [requests for admission].) The sanction shall “order[] that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Id., § 2023.030(a).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even

though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Counsel estimates 1.5 hours spent on each of the six motions to compel and 2.0 hours spent on each motion to deem matters admitted, at a reasonable hourly rate of \$285.00. She also seeks a \$60.00 filing fee for each motion. She seeks 1.0 hour to appear at the hearing for each motion to deem matters admitted and no time for appearance for the other six motions. (See Martinez-Genzon Decls., ¶¶ 8.) The Court finds the number of hours indicated per motion to be unreasonable. First and foremost, when comparing each of the four motions filed as to Defendant Dan Eberhart with the same motions filed as to Defendant Precision Pipeline & Paving Inc., the Court finds the motions to be virtually identical, save for the name of the defendant. Additionally, the declaration filed in each of the motions indicates a total number of hours of work described as total time to 1) prepare the motion; 2) review the opposition; and 3) prepare the reply. No opposition was filed as to any motion, therefore, time estimated for potential review of opposition and preparation of reply are inapplicable. The Court finds a total of .75 hours for each motion at the indicated hourly rate of \$285.00 to be reasonable under the circumstances. The Court finds the requested \$60.00 filing fee per motion to be reasonable.

Conclusion

Plaintiff's motions and requests for sanctions are GRANTED in their entirety. Defendants are ordered to comply within 30 days.